

24STCV07875 24STCV07875

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MOTION TO QUASH

The Court

tenders the following tentative decision in the matter O.A., et al. v.

Jessica Devita, Los Angeles County Superior Court case number 24STCV07875, set for hearing on September 16, 2026. Jessica Devita (Defendant) moves for an order quashing a third party subpoena for the production of business records served on Verizon Communications, Inc. (Verizon) by O.A., J.A., and M.A. (collectively, Plaintiffs). This motion is brought pursuant to Code of Civil Procedure sections 1985.3 and 1987.1. Defendant also seeks the imposition of monetary sanctions in the amount of \$4,606. Plaintiffs oppose the motion. The motion is granted and partial sanctions are awarded in the amount of \$3,642.50.

A.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things . . . at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b) . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) Any party to the action may make such a motion. (Id., § 1987.1, subd. (b)(1).) "Any consumer whose personal records are sought by a subpoena duces tecum and who is a party

to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Id., § 1985.3, subd. (g).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a “more limited scope of discovery available from nonparties.” (Ibid.)

“In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

B. Discussion

Defendant moves to quash

Plaintiffs’ deposition subpoena issued to Verizon. Plaintiffs issued the subpoena on March 5, 2026. (Marandjian Decl. ¶ 8, Ex. G.) The subpoena seeks the following information for the time period between November 4, 2022, and December 31, 2023: (1) Defendant’s subscriber information with Verizon; (2) all of Defendant’s “call originations, call terminations, call attempts, voice and text message transactions . . . data communications, SMS and MMS communications, voice communications, LTE and/or IP sessions and destinations with cell site information, including the originating and receiving phone numbers or network IDs for all incoming and outgoing call transactions, data transactions and push to talk sessions; (3) equipment information; (4) all

stored SMS and MMS content and browser cache information; (5) a legend and definition for any abbreviations; and (6) an explanation of how to read the records. (Ibid.) Defendant objected to the subpoena on March 18, 2026. (Id. ¶ 9.) She has sent meet and confer correspondences which have gone unanswered and thus filed the present motion on April 1, 2026. (Ibid.)

Defendant objects to the subpoena

as violative of Public Utilities Code section 2891. A telephone corporation shall not make available to any other person certain information without first obtaining the subscriber's consent in writing. (Pub. Util. Code, § 2891, subd. (a).) Such information includes the subscriber's calling patterns, including any listing of the numbers called by the subscriber. (Id., § 2891, subd. (a)(1).) Additionally, "[a] subpoena duces tecum for personal records maintained by a telephone corporation which is a public utility . . . shall not be valid or effective unless it includes a consent to release, signed by the consumer whose records are requested, as required by Section 2891 of the Public Utilities Code." (Code Civ. Proc., § 1985.3, subd. (f).)

Here, Plaintiffs have not obtained

the required written consent. Rather, they seek to have this Court compel Defendant to consent to disclosure, citing *Negro v. Superior Court* (2014) 230 Cal.App.4th 879. Specifically, they contend that a court may order a user to give actual consent to disclosure under the Stored Communications Act, a separate federal law. Even if this were within the Court's power, it is not clear that such consent may be ordered with respect to Public Utilities Code section 2891. And even if it could be, this Court is not inclined to exercise its discretion in such a way that contravenes the clear purpose of section 2891. Under that provision, Verizon must have Defendant's written consent to produce her records. It does not. Additionally, under Code of Civil Procedure section 1985.3, the present subpoena is deemed invalid as it lacks a consent to release the relevant records. Thus, the present subpoena is invalid. Accordingly, Defendant's motion to quash is granted.

Defendant seeks an award of

attorney's fees. "In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., §

1987.2, subd. (a).) The Court finds that the present deposition subpoena was made without substantial justification: Plaintiffs sought disclosure of Defendant's subscriber information from Verizon without first obtaining the consent required under Code of Civil Procedure section 1985.3. Thus, sanctions are warranted. Defendant's counsel alleges an hourly rate of \$235, which the Court credits. (Marandjian Decl. ¶ 15.) They further allege that they spent 14.5 hours drafting meet and confer correspondence and objections, the present motion, separate statement, and declaration, and conducting legal research. The Court finds this estimate reasonable given the motion's relative complexity. Counsel also anticipates spending 1.5 hours appearing at the hearing on this matter. (Ibid.) The Court only credits 1 hour. Accordingly, the Court awards \$3,642.50 in sanctions, payable by Plaintiffs' counsel ($[\$235 \text{ per hour}] \times [15.5 \text{ hours}] = \$3,642.50$).

Conclusion:

Defendant's motion to quash is granted. The Court imposes \$3,642.50 in sanctions on Plaintiffs' counsel.